

Use of Very Low Power Radio Frequency Devices or Equipments for Inductive Applications (Exemption from Licensing Requirement) Rules, 2015

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Use of Very Low Power Radio Frequency Devices or Equipments for Inductive Applications (Exemption from Licensing Requirement) Rules, 2015

UNION OF INDIA

India

Use of Very Low Power Radio Frequency Devices or Equipments for Inductive Applications (Exemption from Licensing Requirement) Rules, 2015

Rule

USE-OF-VERY-LOW-POWER-RADIO-FREQUENCY-DEVICES-OR-EQUIPMENTS-FOR-INDUCTIVE-APPLICATIONS-EXEMPTION-FROM-LICENSING-REQUIREMENT-RULES-2015 of 2015

Published on 16 September 2015

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[This is the version of this document from 16 September 2015.]

[Note: The original publication document is not available and this content could not be verified.]

Use of Very Low Power Radio Frequency Devices or Equipments for Inductive Applications (Exemption from Licensing Requirement) Rules, 2015

Published vide Notification No. G.S.R. 697(E), dated 16.9.2015

Last Updated 10th October, 2018

G.S.R. 697(E). - In exercise of the powers conferred by Sections 4 and 7 of the Indian Telegraph Act, 1885 (

13 of 1885
) and Sections 4 and 10 of the Indian Wireless Telegraphy Act, 1933 (

17 of 1933
) , the Central Government hereby makes the following rules, namely: -

1.

Short title and commencement.

(1)

These rules may be called the Use of Very Low Power Radio Frequency Devices or Equipments for Inductive Applications (Exemption from Licensing Requirement) Rules, 2015.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

[Application.

[Substituted by Notification No. G.S.R. 996(E), dated 5.10.2018 (w.e.f 16.9.2015).]

- These rules shall be applicable in the 302 to 435 KHz, 855 to 1050 KHz and 1.89 to 2.31 MHz frequency bands.]

3.

[Definition.

[Substituted by Notification No. G.S.R. 996(E), dated 5.10.2018 (w.e.f 16.9.2015).]

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Indian Telegraph Act, 1885 (

13 of 1885

);

(b)

"Authority" means the authority notified by the Central Government under sub-section (2) of section 4 of the Indian Telegraph Act, 1885 (

13 of 1885

);

(c)

words and expressions used in these rules and not defined but defined in the Act and the Indian Wireless Telegraphy Act, 1933 (

17 of 1933

), shall have the same meanings respectively as assigned to them in those Acts.

(d)

"Field Strength" means Electric field strength (dBuv/m) or Magnetic strength (dBuA/m) of the radio signal.]

4.

[Exemption.

[Substituted by Notification No. G.S.R. 996(E), dated 5.10.2018 (w.e.f 16.9.2015).]

- Notwithstanding anything contained in any law for the time being in force, no licence shall be required by any person to establish, maintain, work, possess or deal in any wireless equipment for the purpose of usage of Very Low Power Radio Frequency Devices or Equipments for Inductive Applications (wireless charging etc.) in the 302 to 435 KHz, 855 to 1050 KHz and 1.89 to 2.31 MHz frequency bands on non-interference, non-protection and shared (non-exclusive) basis, with the maximum Field Strength Limits as specified in the Table below, namely : -

Technical Characteristics

S.No.

Frequency Range

Maximum Field Strength Limits

1

302 to 435 KHz

-15 dBuA/m (H-Field Strength) at 10 metres

2

855 to 1050 KHz

-15 dBuA/m (H-Field Strength) at 10 metres

3

1.89 to 2.3 MHz

-15 dBuA/m (H-Field Strength) at 10 metres

Provided that wherever specific service license is required from the Central Government, the provisions of these rules shall not apply:

Provided further that wherever the use of this band for airborne devices or applications is required, the provisions of these rules shall not apply.]

5.

Conditions.

- The exemptions granted under rule 4 shall be subject to the following conditions, namely: -

(a)

the effect of unwanted energy due to one or a combination of emissions, radiations or induction upon reception in a radio communication system, manifested by any performance degradation, misinterpretation, or loss of information which could be extracted in the absence of such unwanted energy, where any person whom a license has been issued under the provisions of Section 4 of the Indian Telegraph Act, 1885 (

13 of 1885

); and Section 4 of the Indian Wireless Telegraphy Act, 1933 (

17 of 1933

) informs the authority that his licensed system is getting harmful interference from any other radio communication system exempted under these rules, then such authority shall call upon the user of such unlicensed wireless equipment to take necessary steps to avoid interference by relocating the equipment, reducing the power and using special type of antennae; failing which such authority shall recommend discontinuation of such wireless use:

Provided that, before such discontinuation, a reasonable opportunity to explain the circumstances shall be given to such unlicensed user of wireless equipment by such authority.

(b)

these very low power Radio Frequency devices or equipments for inductive applications shall be of Equipment type approved and designed and constructed in such a manner so that the technical parameters shall conform to the limits specified in the Table referred to in rule 4:

Provided that the application for obtaining equipment type approval shall be made to the Central Government in the application format given in Annexure to these rules.

Annexure

Application For Equipment Type Approval

Section-A- Applicant

1.

Name of manufacturing agency applying for equipment type approval

:

2.

Postal Address of manufacturing Agency

:

3.

Name of Product and
the product

Identification (model number etc.)

:

Section- B- Details of Transmitter

1.

Frequency range

:

2.

No. of preset switchable channels

:

3.

No. of voice /Data/

TV Channels

(In case of multi- channel equipment)

:

4.

Tx-Rx channel

separation

(In case of Duplex/multi-channel equipment)

:

5.

Adjacent channel

separation

(In case of multi-channel equipment)

:

6.

Frequency stability

:

7.

Spurious/ Harmonic radiations

:

(i) Carrier

suppression

(In case of carrier suppressed systems)

:

(ii) Unwanted side

band suppression

(In case of SSB systems)

:

(iii) 2nd Harmonic radiations

:

(iv) 3rd Harmonic radiations

:

8.

Max. Frequency Deviation

:

9.

Mode of Emission

:

10.

Bandwidth of Emission

:

11.

Test Tone Deviation

:

12.

Base band frequency

(In case of multi-channel equipment)

:

13.

Type of modulation to be required

:

14.

Pre-emphasis

:

15.

Power output

(At the input of antenna)

:

16.

Any other information

:

Section-C- Details of Receivers

1.

Frequency range

:

2.

Mode of reception

:

3.

Spurious response of receiver

:

4.

Sensitivity

:

5.

Frequency stability

:

6.

(a) Effective noise temperature

:

(b) Threshold input level

:

7.

Intermediate frequency

:

8.

De-emphasis

:

9.

Selectivity

:

10.

Any other particulars

:

Signature of the applicant

Place :

Date :

(Note: Separate application should be
submitted for each type of equipment.)

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